

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
DERYCK HAREWOOD,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER COREY JOHNSON, Shield No. 13116
and POLICE OFFICER "JOHN DOE",

Defendants,
-----X

To the above named Defendants:

Index No.:
Plaintiff designates
Kings County as
place of trial.
The basis of venue is
Plaintiff's residence
SUMMONS

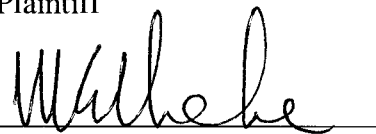
Plaintiff resides at
478 East 96 Street
Brooklyn, New York

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
October 16, 2019

Yours, etc.,
Law Office of Vincent I. Eke-Nweke, P.C.
Attorney for Plaintiff

By: _____



VINCENT I. EKE-NWEKE
498 Atlantic Avenue
Brooklyn, New York 11217
(718) 852-8300

TO:
DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
The Corporation Counsel
of the City of New York
New York City Law Department
100 Chambers Street
New York, New York

POLICE OFFICER CHRISTOPHER OLIVER
NYPD 77th Precinct, 127 Utica Avenue,
Brooklyn, NY 11213

POLICE OFFICER "JOHN DOE"
NYPD 77th Precinct, 127 Utica Avenue
Brooklyn, NY 11213

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X Index No.:

DERYCK HAREWOOD,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

POLICE OFFICER COREY JOHNSON, Shield No. 13116

and POLICE OFFICER "JOHN DOE",

Defendants,

-----X

Plaintiff, DERYCK HAREWOOD ("HAREWOOD" or "Plaintiff"), by and through his attorney, LAW OFFICE OF VINCENT I. EKE-NWEKE, P.C., as for his Complaint, complains of the Defendants, THE CITY OF NEW YORK, POLICE OFFICER COREY JOHNSON, Shield No. 13116 and POLICE OFFICER "JOHN DOE" and alleges upon information and belief, as follows:

I. NATURE OF THE ACTION

1. That this is an action brought pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States, the Civil Rights Act of 1866, 42 U.S.C. §§ 1983 and 1985 ("§§ 1983 and 1985") and the Common Law of the State of New York, to redress the deprivation under color of law, of the rights, privileges, and immunities secured to Plaintiff by the aforementioned federal laws and the personal injuries suffered by Plaintiff as a result of the Defendants' negligent and intentional conduct.

2. That Plaintiff seeks compensatory and punitive damages, and other appropriate relief pursuant to the Fourteenth Amendment to the Constitution of the United States, §§ 1983 and 1985 and the Common Law of the State of New York.

II. SATISFACTION OF PROCEDURAL PREREQUISITES FOR SUIT

3. That Plaintiff has complied with all procedural prerequisites required by law prior to initiating this action.

4. That written Notice of Claim, sworn to by Plaintiff was duly served upon defendant THE CITY OF NEW YORK (hereinafter, the "CITY") within 90 days after Plaintiff's claims arose.

5. That least 30 days have elapsed since the Notice of Claim was presented to the CITY for adjustment and the CITY has neglected, failed and/or refused to make any adjustment or payment.

6. That pursuant to § 50-h of the General Municipal Law, on June 4, 2019, Plaintiff was orally examined by the Defendant CITY, concerning the claim asserted herein.

7. That this action has been commenced within one year and ninety days after the happening of the events on which this claim is based.

III. THE PARTIES

8. That at all times herein alleged, Plaintiff was and still is resident within Brooklyn, Kings County, City and State of New York.

9. That at all times herein alleged, the CITY was and is a municipal corporation duly organized and existing under the laws of the State of New York, and located in the City of New York.

10. That at all times herein alleged, the CITY has and still does maintain a police department, The City of New York Police Department (hereinafter "NYDP"), with duly appointed police officers, detectives, sergeants and/or policemen, pursuant to State Law and the mandate of the CITY'S Charter.

11. That pursuant to Chapter 16, §396 of the Charter of the CITY, all actions against the agencies of the CITY for the recovery of penalties shall be brought in the name of the CITY.

12. That at all times herein alleged, Defendant Police Officer COREY JOHNSON, Shield No. 13116 was and still is a duly appointed police officer employed by the CITY at the 77th Precinct of the NYPD and was at all relevant times acting within the scope of his employment with the CITY.

13. That at all times herein alleged, Defendant "JOHN DOE" was and still is a duly appointed police officer employed by the CITY. The name "John Doe" being fictitious, the true name of said Police Officer being unknown to the Plaintiff, the person intended being certain Police Officer employed by the CITY, presumably, at the 77th Precinct of the NYPD and was at all relevant times, acting for herself and within the scope of her employment with the CITY.

14. That at all times herein alleged, each and all of the acts of the Defendants alleged herein were done by Defendants under color and pretense of the statutes, regulations, customs and usages of the State of New York and under the authority of their offices as alleged herein.

15. That the CITY is vicariously liable for the conduct, acts or omissions of Defendants COREY JOHNSON and "JOHN DOE", alleged herein.

IV. FACTUAL ALLEGATIONS

16. That on or about August 16, 2018, at approximately 11:45 p.m. Plaintiff was lawfully walking towards his parked motor vehicle to sit with his friends on one of the street benches located near or at Eastern Parkway between Schenectady and Troy Avenues, Brooklyn, New York, when Defendants COREY JOHNSON and "JOHN DOE" parked their police cruiser near Plaintiff's parked automobile, came out of the police cruiser and began to question or interrogate two of Plaintiff's friend's who were already sitting on a street bench at the aforesaid location.

17. That upon observing that his friends were being questioned by said Defendants, Plaintiff used his cell phone to record the police activity between said Defendants and his friends.

18. That as soon as Plaintiff began to record, said Defendants walked over to the Plaintiff, asked him for his ID and then summoned another police officer to administer a Breathalyzer test to the Plaintiff. Defendants did not have any reasonable basis to subject Plaintiff to a Breathalyzer test.

19. That the result of the Breathalyzer test allegedly estimated Plaintiff's blood alcohol content ("BAC") to be insignificant and substantially less than the .08 percent legal limit.

20. That notwithstanding that Plaintiff was not driving nor inside his vehicle at the relevant time and that his BAC was allegedly insignificant, Defendants without a warrant, or other legal process or justification hand-cuffed and falsely placed Plaintiff under arrest based on the fabricated allegation that Plaintiff was driving while intoxicated.

21. That upon arresting the Plaintiff, Defendant JOHNSON transported Plaintiff to an NYPD facility located at 645 Grand Avenue, Brooklyn, New York, where Plaintiff was subjected to second Breathalyzer test, other tests and detained in a filthy cell for over two hours. The second Breathalyzer test also allegedly estimated that Plaintiff's BAC was substantially less than the legal limit.

22. That following the administration of the second Breathalyzer test, said Defendant transported Plaintiff to the 77th Precinct of the NYPD where he was detained in a filthy cell for over seven hours.

23. That thereafter Plaintiff was transported to the Central Booking located at 120 Schemahorn, Brooklyn, New York where he was finger printed, photographed, subjected to eye scan

or retina tests in accordance with the usual police practice on arrest of criminals, and detained in a filthy cell for over five hours.

24. That subsequently, Defendants, the CITY, its officers, servants, agents and employees falsely and maliciously arraigned and prosecuted Plaintiff at the Kings County Criminal Court under Docket No. CR-037672-18KN on the basis of false or fabricated charges of driving while ability impaired in alleged violation of VTL 1192 01; drinking in motor vehicle on Highway in alleged violation of VTL 1227 01; seat belt violation in alleged VTL 1229-C; and consumption of alcohol on street in alleged violation of AC 10-125 (b).

25. That Plaintiff did not commit any of the charged offences however, he was criminally prosecuted based solely upon the false or fabricated accusatory instrument procured by said Defendants and signed or sworn to by Defendant JOHNSON.

26. That on or about February 6, 2019, the criminal case against Plaintiff was dismissed. Prior to the dismissal of the case, Plaintiff was constrained to make approximately seven court appearances at said criminal court in connection with the prosecution and each appearance lasted approximately four hours.

27. That Plaintiff did not in any way engage in any of the charges alleged against him by Defendants, neither did Plaintiff commit any of the offenses he was charged with.

28. That in fact, prior to the arrest, detention and prosecution of Plaintiff, Defendants JOHNSON and "DOE" knew very well that Plaintiff's vehicle was parked at the time, that Plaintiff did not drive nor operate the vehicle and was not inside the vehicle at the time in question.

29. That Plaintiff did not have any alcohol in his possession at the time in question and his vehicle was parked and locked.

30. That this action falls within one or more of the exceptions set forth in Article 16 of the Civil Practice Law and Rules.

**AS FOR A FIRST CAUSE OF ACTION
(FALSE ARREST/FALSE IMPRISONMENT)**

31. That Plaintiff realleges the allegations contained in paragraphs "1" through "30" inclusive.

32. That Defendants by themselves and/or in behalf of the CITY within the scope of their employment, unlawfully and intentionally arrested, imprisoned and detained Plaintiff in custody against his will.

33. That the arrest and detention of Plaintiff were without probable cause and without any warrant or legal process directing or authorizing Plaintiff's arrest or detention.

34. That Defendants, by themselves and/or through their agents, servants or employees, violated the provisions of § 1983, in that, acting under the color of law and in collaboration with each other, they deprived Plaintiff of his rights, privileges and/or immunities as provided by the United States Constitution and its laws.

35. That the arrest and detention of Plaintiff was malicious and unlawful and without just cause or reasonable cause and was in violation of the Common Law of the State of New York.

36. That there is no justifiable excuse for Defendants' conduct alleged herein.

37. That by arresting and detaining Plaintiff, Defendants also violated the provisions of the Fourth Amendment to the United States Constitution and Article 1, § 12 of the New York State Constitution.

38. That Plaintiff, as a result of the foregoing, was humiliated, injured in his reputation and has suffered great mental anguish, sleepless nights, emotional distress economic damages.

**AS AND FOR A SECOND CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

39. That Plaintiff realleges the allegations contained in paragraphs "1" through "38" inclusive.

40. That Defendants unlawfully and intentionally arrested, detained and commenced criminal judicial prosecution against Plaintiff. The prosecution was terminated in plaintiff's favor.

41. That the arrest and prosecution of Plaintiff was malicious and unlawful and without just cause or reasonable cause and was in violation of the Common Law of the State of New York.

42. That Defendants, by themselves and/or through their agents, servants or employees, violated the provisions of § 1983, in that, acting under the color of law and in collaboration with each other, they deprived Plaintiff of his rights, privileges and/or immunities as provided by the United States Constitution and its laws.

43. That Plaintiff, as a result of the foregoing, was humiliated, injured in his reputation and has suffered great mental anguish, sleepless nights, emotional distress and economic damages.

44. That in taking the above-described actions, Defendants acted with malice and/or reckless indifference to Plaintiff's constitutional and statutory rights.

**AS FOR A THIRD CAUSE OF ACTION
(VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHT TO A FAIR TRIAL BY
CREATION OF FALSE OR FABRICATED INFORMATION)**

45. That Plaintiff realleges the allegations contained in paragraphs "1" through "44" inclusive.

46. That Defendants, by themselves and/or through their agents, servants or employees, violated the provisions of § 1983, in that, acting under the color of law and in collaboration with each other created false or fabricated information, forwarded same to the Office of the Kings County

District Attorney thereby caused Plaintiff to be deprived of his liberty as guaranteed by the United States Constitution.

47. That Plaintiff, as a result of the foregoing, was humiliated, injured in his reputation and has suffered great mental anguish, sleepless nights, emotional distress and economic damages.

48. That the amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment:

- (a) against each Defendant for each cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
- (b) directing the individual Defendants to pay Plaintiff an additional amount as punitive damages for their willful and/or reckless disregard for Plaintiff's constitutional and statutory rights;
- (c) awarding Plaintiff such interest as is allowed by law;
- (d) awarding Plaintiff his reasonable attorneys' fees and costs; and
- (e) granting other such and further relief as this Court deems necessary and proper.

Dated: Brooklyn, New York
October 16, 2019

Yours, etc.,
Law Office of Vincent I. Eke-Nweke, P.C.
Attorney for Plaintiff

By: 
VINCENT I. EKE-NWEKE
498 Atlantic Avenue
Brooklyn, New York 11217
(718) 852-8300

STATE OF NEW YORK)

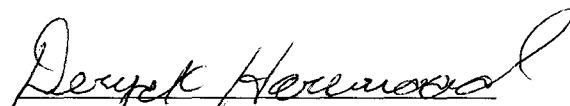
:

COUNTY OF KINGS)

DERYCK HAREWOOD, being duly sworn, deposes and says:

That I am the plaintiff herein.

I have read the foregoing Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and as to those matters, I believe them to be true.


DERYCK HAREWOOD


Notary Public

Sworn to before me this
16th, day of October, 2019

VINCENT I. EKE-NWEKE
Notary Public, State of New York
Qualified in Richmond County
No. 02EK000004
My Comm. Expires 04-18- 2022

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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DERYCK HAREWOOD,

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK ,
POLICE OFFICER COREY JOHNSON, Shield No. 13116
and POLICE OFFICER "JOHN DOE",

Defendants,

-----X

**CERTIFICATION
PURSUANT TO
CPLR § 130-1.1 a(b)**

VINCENT I. EKE-NWEKE, an attorney duly admitted to practice law before the courts
of this State, states the following to be true under penalties of perjury:

I hereby certify pursuant to 22 NYCRR Section 130-1.1a(b) that to the best of my
knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the
presentation of the annexed Summons and Verified Complaint or the contentions therein are not
frivolous as defined in 22 NYCRR Section 130-1.1)(c).

Dated: October 16, 2019
Brooklyn, New York

Law Office of Vincent I. Eke-Nweke, P.C.

By 
VINCENT I. EKE-NWEKE
498 Atlantic Avenue
Brooklyn, New York 11217
(718) 852-8300

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**SUPREME COURT OF THE STATE OF NEW YORK
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THE CITY OF NEW YORK,
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and POLICE OFFICER "JOHN DOE",

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF VINCENT I. EKE-NWEKE, P.C.

Attorney(s) for Plaintiff(s)

498 Atlantic Avenue

Brooklyn, New York 11217-1813

(718) 852-8300

To:

**Service of a copy of the within
is hereby admitted**

Dated:..... 2019

Attorneys for Defendant(s)
